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AS AMENDED

By: Burns, Standridge, and
McIntosh of the Senate

Provenzano of the House

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

Section 150.28b. A. All accredited crime laboratories in ~~the~~
~~State of Oklahoma must~~ this state shall supply to all law
enforcement agencies the same standardized sexual assault evidence
kit for the collection of DNA or other evidence as a result of an
alleged crime of sexual assault.

B. A sexual assault evidence kit, or other DNA evidence if a kit is not collected, must be submitted to the appropriate accredited crime laboratory for forensic testing within ~~twenty (20)~~ ten (10) days after receipt of the evidence by a law enforcement agency if a report of the sexual assault is made to the law

1 enforcement agency, unless the victim requests that the sexual
2 assault evidence kit not be tested.

3 C. If, at the time the forensic medical examination is
4 conducted, a report of the sexual assault is not made or if the
5 victim requests that the sexual assault evidence kit not be tested,
6 the medical provider shall inform the victim in writing of his or
7 her right to request the testing of the sexual assault evidence kit
8 at any future time. The law enforcement agency shall submit the
9 sexual assault evidence kit to the appropriate accredited crime
10 laboratory for forensic testing within ~~twenty (20)~~ ten (10) days of
11 such request. However, nothing in this subsection shall negate the
12 responsibility of a medical provider to report a suspected sexual
13 assault as provided for in Section 40.3A of Title 22 of the Oklahoma
14 Statutes.

15 D. A collected sexual assault evidence kit, whether tested or
16 untested, must be retained in a secure, environmentally safe manner
17 for not less than fifty (50) years or for the length of the statute
18 of limitations for the alleged crime, whichever is longer.

19 E. Each law enforcement agency is responsible for the
20 maintenance and storage of untested kits either in their own
21 evidence storage or through an agreement with another agency with
22 larger capacity.

23 F. ~~By January 1, 2020, the~~ The Oklahoma State Bureau of
24 Investigation (OSBI) and each accredited crime laboratory, in

1 coordination with ~~Oklahoma~~ the Sexual Assault Forensic Evidence Task
2 ~~Force~~ (SAFE) Board, shall adopt and disseminate guidelines and
3 procedures for the collection, submission, and testing of DNA
4 evidence that is obtained in connection with an alleged sexual
5 assault. A collected sexual assault evidence kit collected on or
6 after the effective date of this act shall be processed by the
7 appropriate accredited crime laboratory to which it was submitted
8 within thirty (30) days after receipt of the sexual assault evidence
9 kit. Priority testing shall be given for sexual assault evidence
10 kits that will yield evidentiary value to the investigation and
11 prosecution of the alleged sexual assault.

12 G. The OSBI may inquire as to the condition and location of a
13 sexual assault evidence kit that has not been submitted to a
14 forensic laboratory within the deadlines established in subsection B
15 of this section.

16 SECTION 2. This act shall become effective November 1, 2026.

17 COMMITTEE REPORT BY: COMMITTEE ON APPROPRIATIONS
18 March 4, 2026 - DO PASS AS AMENDED
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